SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 152 of 2013 (YEAR: 2021)

CORAM: R.F. NARIMAN, NAVIN SINHA, INDIRA BANERJEE

Toofan Singh
... Appellant(s) / Petitioner(s)
Versus
State of Tamil Nadu
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985, Indian Evidence Act, 1872
Sections:	Section 67 NDPS, Section 53 NDPS, Section 25 Evidence Act

JUDICIAL HEADNOTE & SUMMARY

Three-judge bench held that officers designated under Section 53 NDPS are police officers; therefore, confessional statements recorded under Section 67 cannot be utilized as substantive evidence.

RATIO DECIDENDI

The Court held that: Three-judge bench held that officers designated under Section 53 NDPS are police officers; therefore, confessional statements recorded under Section 67 cannot be utilized as substantive evidence. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Toofan Singh v. State of Tamil Nadu (Criminal Appeal No. 152 of 2013) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, Indian Evidence Act, 1872, particularly Section 67 NDPS, Section 53 NDPS, Section 25 Evidence Act. Three-judge bench held that officers designated under Section 53 NDPS are police officers; therefore, confessional statements recorded under Section 67 cannot be utilized as substantive evidence.

OPERATIVE ORDER

ORDER: Decided